

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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SEAN CROOKS,

Plaintiff,

-against-

THE CITY OF NEW YORK; COMMISSIONER
RAYMOND W. KELLY; SERGEANT DAVID EGGERS;
P.O. ALEXANDER WINTERS, Shield # 24889; P.O.
MATTHEW PARLO, Shield # 13063; P.O. ERIC CRUZ;
P.O. BRIAN DUFFY, the individual defendants sued
individually and in their official capacities,

Defendants.
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COMPLAINT

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U.S. DISTRICT COURT E.D.N.Y.
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ECF Case

BROOKLYN OFFICE

Jury Trial Demanded

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York. The claims arise from an incident, which occurred on or about September 14, 2004 in Brooklyn, New York. During the incident the City of New York and members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things, false arrest, excessive force, an unlawful search and seizure, unlawful strip search, assault and battery, intentional and negligent infliction of emotional distress, retaliation for free speech, denial of medical care, fabricated evidence, conspiracy, harassment, unconstitutional conditions of confinement, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide claims arising under state law. A notice of claim was duly filed on the City of New York within 90 days of the incident at issue, more than 30 days have elapsed since such filing, and the City has refused to settle plaintiff's claims. Moreover, this action was filed within one year and 90 days of the incidents that are the basis of this case.

4. Venue is proper here pursuant to 28 U.S.C. § 1391 because the acts in question occurred in Kings County and the City of New York subject to personal jurisdiction in the Eastern District of New York.

PARTIES

5. Plaintiff Sean Crooks is a resident of the State of New York, Kings County.

6. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.

7. Defendant Raymond W. Kelly is the Commissioner of the NYPD who violated plaintiff's rights as described herein.

8. Defendant David Eggers is a New York City Police Sergeant employed in the 802 Command and/or PSA-2 located in Brooklyn, New York who violated plaintiff's rights as described herein.

9. Defendant Alexander Winters is a New York City Police Officer, assigned Shield # 24889, employed in the 802 Command and/or PSA-2 located in Brooklyn, New York who violated plaintiff's rights as described herein.

10. Defendant Matthew Parlo is a New York City Police Officer, assigned Shield # 13063, employed in the 802 Command and/or PSA-2 located in Brooklyn, New York who violated plaintiff's rights as described herein.

11. Defendant Eric Cruz is a New York City Police Officer employed in the 802 Command and/or PSA-2 located in Brooklyn, New York who violated plaintiff's rights as described herein.

12. Defendant Brian Duffy is a New York City Police Officer employed in the 802 Command and/or PSA-2 located in Brooklyn, New York who violated plaintiff's rights as described herein.

13. The individual defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

14. The following is a summary set forth for the purpose of demonstrating, averring, and providing notice of plaintiff's claims against the defendants. Plaintiff has not set forth each and every fact concerning the incident described below.

15. On September 14, 2004, at approximately 9:40 p.m., in the vicinity of 414 Sutter Avenue, Brooklyn, New York, police officers assigned to the 802 Command and/or PSA-

2, including David Eggers, Alexander Winters, Matthew Parlo, Eric Cruz, and Brian Duffy committed the following illegal acts against plaintiff as described below.

16. Plaintiff Sean Crooks, a young man with no criminal record, was in the vicinity of 414 Sutter Avenue in Brooklyn, New York when David Eggers, Alexander Winters, Matthew Parlo, Eric Cruz, and Brian Duffy without either an arrest warrant, a search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime, falsely arrested plaintiff when he attempted to ask a question of the police officers.

17. During the arrest of plaintiff, a slim man who offered no resistance to the defendant officers' actions, defendants Winters, Parlo, Cruz, and Duffy, maliciously, gratuitously, and unnecessarily grabbed and shoved plaintiff, jabbed and pressed a baton into plaintiff's ribs, slammed plaintiff into a parked vehicle, twisted plaintiff's arms, and placed excessively tight handcuffs on plaintiff's wrists. Those defendants who did not touch plaintiff, in particular Sergeant Eggers, witnessed these acts, but failed to intervene and protect plaintiff from this conduct.

18. When plaintiff complained about the defendants' conduct, the defendants, in retaliation for plaintiff's free speech, became verbally abusive and placed plaintiff in a police vehicle for approximately 3 hours, which caused unnecessary pain and suffering, humiliation, and a denial of medical care, before transporting plaintiff to PSA-2.

19. At PSA-2, plaintiff continued to complain about the defendants' conduct and informed the defendants that he intended to file formal charges against the defendants for falsely arresting him and subjecting him to excessive force, and in retaliation for plaintiff's free speech, the defendant, including Sergeant Eggers, illegally ordered that plaintiff be strip-searched without either an arrest warrant, a search warrant, probable cause, or reasonable

suspicion to justify the search. Indeed, plaintiff had only been arrested for misdemeanor charges that did not involve the possession and/or sale of weapons, narcotics or contraband.

20. Thereafter, the defendant officers removed the plaintiff to Brooklyn Central Booking.

21. While plaintiff was incarcerated at PSA-2 and in Brooklyn Central Booking awaiting arraignment, defendants Winters, Parlo, Cruz, Duffy and Eggers, pursuant to a conspiracy, falsely and maliciously told the Kings County District Attorney's Office that plaintiff had committed a crime, and based on the officers' false allegations the Kings County District Attorney's Office decided to prosecute plaintiff under Complaint # 2004KN055230 for Obstruction of Governmental Administration (PL 195.05), and Resisting Arrest (PL 205.30).

22. Further, while at Brooklyn Central Booking plaintiff was subjected to depraved, filthy, and inhumane conditions of confinement, including overcrowding, temperature extremes, and toilet facilities that overflowed onto the floor.

23. The guards and personnel assigned to Central Booking looked the other way at these dangerous conditions, and ignored arrestees, including plaintiff, who sought their assistance.

24. At plaintiff's arraignment, plaintiff was released on his own recognizance.

25. After several court appearances, the charges against plaintiff were dismissed.

26. The individual defendants acted in concert committing these illegal acts toward plaintiff.

27. Plaintiff did not resist arrest at any time during the above incidents.

28. Plaintiff did not engage in suspicious, unlawful or criminal activity prior to or during the above incidents.

29. The individual defendants did not observe plaintiff engaged in suspicious, unlawful, or criminal conduct at any time prior to or during the above incidents.

30. At no time prior to or during the above incidents were the individual defendants provided with information or in receipt of a credible or an objectively reasonable complaint from a third person that plaintiff had engaged in suspicious, unlawful or criminal conduct.

31. The aforesaid events were not an isolated incident. Defendant Commissioner Raymond W. Kelly has been aware (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of the NYPD's officers are insufficiently trained on the proper way to use force, search an arrestee, provide medical care, and how to treat innocent and/or uninvolved individuals who are found in a location that is the subject an incident. Commissioner Kelly is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, the Commissioner Kelly has failed to take corrective action. This failure caused the officers in the present case to violate the plaintiff's civil rights.

32. Moreover, Commissioner Kelly was aware prior to the incident that the defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, Commissioner Kelly has retained these officers, and failed to adequately train and supervise them.

33. Further, in Shain v. Ellison, 273 F.3d 56 (2d Cir. 2001), the Second Circuit held that the Fourth Amendment to the United States Constitution prohibits officials from

performing strip searches of pretrial detainees charged with misdemeanors or other lesser offenses unless there exists reasonable suspicion that the detainee is concealing a weapon or other contraband based on the crime charged, the particular characteristics of the arrestee, or the circumstances of the arrest.

34. Plaintiff was charged with a misdemeanor when he was strip searched at PSA-2.

35. NYPD has completely ignored the Second Circuit's mandate in Shain by continuing to enforce its unlawful strip search policy.

36. Plaintiff was subjected to NYPD's unlawful policy of strip-searching newly arrested individuals.

37. As a result of defendants' actions plaintiff experienced personal and physical injuries (including injuries to his torso and wrists), pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

FEDERAL AND STATE CLAIMS AGAINST THE CITY OF NEW YORK

38. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

39. The City of New York directly caused the constitutional violations suffered by plaintiff.

40. Upon information and belief, the City of New York was aware from notices of claim, lawsuits, complaints, and from NYPD's own observations, that the officers involved in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

41. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action. The City of New York failed to properly train, retrain, supervise, discipline, monitor, and improperly utilized and retained these officers. Moreover, the City of New York failed to adequately investigate prior complaints against the officers and created a culture where officers can harass, assault citizens without consequence. Indeed, when citizens file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

42. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

43. Moreover, the aforesaid conduct by the City of New York amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

44. Finally, under state law, the City of New York is responsible for its employees' actions under the doctrine of respondeat superior.

**FEDERAL AND STATE CLAIMS AGAINST
DEFENDANT KELLY**

45. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

46. Defendants Kelly is liable, in his official capacity, to plaintiff because: (1) he created and allowed to continue a policy or custom under which unconstitutional practices occurred, (2) he was grossly negligent in supervising subordinates who committed the wrongful

acts, and (3) he exhibited deliberate indifference to the rights of others by failing to act on information indicating that unconstitutional acts were occurring.

47. Upon information and belief, defendant Kelly was aware from notices of claim, lawsuits, complaints, and the NYPD's own observations, that the officers sued in the present case were unfit to be police officers, and that it was highly likely that they would commit the acts alleged in the present case.

48. Nevertheless, defendant Kelly exercised deliberate indifference by failing to take remedial action.

49. The aforesaid conduct by defendant Kelly violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution by failing to retrain the defendant subordinate officers, failing to adequately discipline the defendant subordinate officers, failing to adequately investigate prior complaints against the defendant subordinate officers either at the facilities where the incidents occurred, or at Kelly's Headquarters located in New York, New York, and creating a culture where officers are encouraged to harass and assault those question their authority, and acting in manner which amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

50. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

51. The aforesaid conduct of defendant Kelly amounted to negligent hiring, training, monitoring and retention of incompetent employees, in violation of state law.

**FEDERAL AND STATE CLAIMS AGAINST
THE INDIVIDUAL DEFENDANTS**

52. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

53. The conduct of defendant officers, as described herein, amounted to false arrest, excessive force, an unlawful search and seizure, unlawful strip search, assault and battery, intentional and negligent infliction of emotional distress, retaliation for free speech, denial of medical care, fabricated evidence, conspiracy, harassment, unconstitutional conditions of confinement, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

54. The conduct of the defendant officers, as described herein, violated plaintiff's rights under 42 U.S.C. §§ 1983 and 1985(3), First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution by committing false arrest, excessive force, an unlawful search and seizure, unlawful strip search, assault and battery, intentional and negligent infliction of emotional distress, retaliation for free speech, denial of medical care, fabricated evidence, conspiracy, harassment, unconstitutional conditions of confinement, abuse of process, gross negligence, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom.

55. Defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive

plaintiff of his rights secured by 42 U.S.C. §§ 1983 and 1985(3), First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

56. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation.

57. The plaintiff is also entitled to receive punitive damages because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as this Court may deem just and proper,

including injunctive and declaratory relief.

DATED: New York, New York
November 14, 2005

MICHAEL O. HUESTON, ESQ.

Attorney for Plaintiff

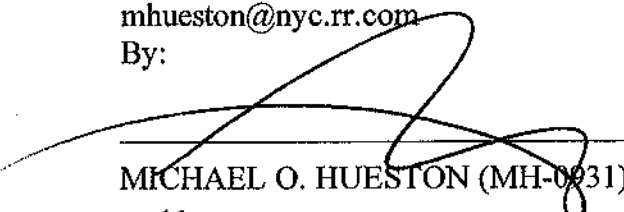
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